

IN THE _____ COURT OF _____, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. _____

(First, Middle, and Last name) DEFENDANT

PETITION TO DISMISS AND SEAL OFFENSE IN POST ADJUDICATION DRUG COURT

PROCEEDING PURSUANT TO A.C.A. § 16-98- 303 {AND TO SEAL
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT }

Comes the Defendant and for his/her petition to seal the record
states:

1. The defendant was arrested on the _____ day of _____, _____, and charge d with the offense(s) of _____
A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.
2. The defendant plead guilty or nolo contendere to or was found guilty of _____, in violation of A.C.A. § _____, on the _____ day of _____, _____.
3. The Defendant was placed on probation for a period of _____ months.

IN THE _____ COURT OF Example County, ARKANSAS
_____ DIVISION

STATE OF ARKANSAS PLAINTIFF

vs. Case No. 24-CR-001234

(First, Middle, and Last name) DEFENDANT

PETITION TO DISMISS AND SEAL OFFENSE IN POST ADJUDICATION DRUG COURT

PROCEEDING PURSUANT TO A.C.A. § 16-98- 303 {AND TO SEAL
SEPARATE PREVIOUS OFFENSE FROM ANOTHER COURT }

Comes the Defendant and for his/her petition to seal the record
states:

1. The defendant was arrested on the _____ day of _____, _____, and charge d with the offense(s) of _____
A Class _____ ☐ felony ☐ misdemeanor in violation of A.C.A. § _____.
2. The defendant plead guilty or nolo contendere to or was found guilty of Possession of a controlled substance, in violation of A.C.A. § _____, on the _____ day of _____, _____.
3. The Defendant was placed on probation for a period of _____ months.

4. The terms and conditions of Defendant's probation included the requirement that the Defendant successfully complete an approved drug court program.
5. The Defendant has successfully completed a drug court program.
6. The Defendant has received aftercare programming.
7. ☐ The Defendant has no pending felony charges in any state or federal court; or
☐ The Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

8. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County _____ Court the Defendant previously plead guilty or nolo contendere to or was found guilty of _____, in violation of A.C.A. § _____.
9. The offense(s) listed in Paragraph 8 above, if any, is/are a target offense as defined in A.C.A. § 16- 93 -1202(10)(A)(i).
10. The offense(s) listed in Paragraph 8 above, if any, is/are not:
- i. Residential burglary;
 - ii. Commercial burglary;
 - iii. Breaking or entering; or
 - iv. Fourth and/or subsequent offense of driving while intoxicated.
11. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

4. The terms and conditions of Defendant's probation included the requirement that the Defendant successfully complete an approved drug court program.
5. The Defendant has successfully completed a drug court program.
6. The Defendant has received aftercare programming.
7. ☐ The Defendant has no pending felony charges in any state or federal court; or
☐ The Defendant has one or more pending felony charges in state or federal court and the status of that/those charges is/are as follows:

8. If applicable, on the _____ day of _____, _____, in case number(s) _____ in _____ County Example County Court the Defendant previously plead guilty or nolo contendere to or was found guilty of _____, in violation of A.C.A. § _____.
9. The offense(s) listed in Paragraph 8 above, if any, is/are a target offense as defined in A.C.A. § 16- 93 -1202(10)(A)(i).
10. The offense(s) listed in Paragraph 8 above, if any, is/are not:
- i. Residential burglary;
 - ii. Commercial burglary;
 - iii. Breaking or entering; or
 - iv. Fourth and/or subsequent offense of driving while intoxicated.
11. The Defendant has satisfactorily fulfilled the terms and conditions of probation/court supervision or has been released by the court prior to that time.

12. The Defendant has paid all filing fees mandated by
A.C.A §16- 90-1419.

13. As evidenced by the signature below, the above information is
true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, _____, prays
this Court enter an Order Dismissing And Sealing the above-referenced
case pursuant to A.C.A.§16-98-303 .

FURTHER, if applicable, the Defendant, _____,
prays this Court enter an Order Sealing case number(s) _____
from _____ County _____ Court pursuant to A.C.A.§16-98 - 303.

Defendant’s Signature

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB _____ FBI No. (if known) _____

12. The Defendant has paid all filing fees mandated by
A.C.A §16- 90-1419.

13. As evidenced by the signature below, the above information is
true and correct to the best of Defendant’s knowledge.

WHEREFORE, the Defendant, _____, prays
this Court enter an Order Dismissing And Sealing the above-referenced
case pursuant to A.C.A.§16-98-303 .

FURTHER, if applicable, the Defendant, _____,
prays this Court enter an Order Sealing case number(s) _____
from _____ County Example County Court pursuant to A.C.A.§16-98 - 303.

Defendant’s Signature

Date

THE FOLLOWING INFORMATION IS REQUIRED FOR PROPER
IDENTIFICATION OF THE DEFENDANT IN THE STATE AND
NATIONAL RECORD SYSTEMS

Race _____ Arrest Tracking Number _____
Sex _____ SID No. _____
DOB 1991-04-17 FBI No. (if known) _____

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date

Certificate of Service

I, _____, do hereby certify that a true and correct copy of the foregoing Petition has been provided to either the Prosecuting Attorney for the County in which the Petition has been filed or to the City Attorney depending on which office prosecuted the case and the arresting agency by placing a copy of this Petition in the United States mail, postage prepaid, to said office or by hand delivering a copy to said office.

Defendant or Defendant's Attorney

Date